

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARGARITA N PRIKHODKO,

Petitioner

VS.

ALEXANDER KAMIL,

Respondent

) Case Number: FMS-20-387303

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHANGE TEMPORARY EMERGENCY ORDER, CHILD CUSTODY,
VISITATION (PARENTING TIME), ORDER SHORTENING TIME TRANSFER BENEFITS/
MODIFICATION CUSDODY ORDERS

TENTATIVE RULING

The parties are ordered to appear at 9am on 5/14/2026 in Department 404 in person or via Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above

A. Procedural History

- 1) Petitioner Margarita Prikhodko (Mother) and Respondent Alexander Kamil (Father) have one minor child together, Thomas (DOB 2/14/2011, age 16). Pursuant to a Stipulation and Order filed 5/4/2020, the parties have shared joint legal and joint physical custody of Thomas on a week-on, week-off schedule. In the 5/4/2020 Stipulation and Order, the parties also agreed to open a joint brokerage account to cover Thomas's expenses and for each party to place \$500 per month into the account.
- 2) On 4/17/2026, Father filed an ex parte request for sole legal and sole physical custody of Thomas. He states that on 3/1/2026, Mother "unilaterally surrendered custody" of Thomas to him after

1 Thomas, who is “severely disable[d],” “completely non-verbal,” and “requires 24-hour
2 supervision,” became aggressive, attacked Mother, and bit her, and Mother “completely lost
3 control over him.” Father states he has been providing around-the-clock care for Thomas since
4 3/1/2026. He states he needs a custody and parenting time order so that he can receive In Home
5 Support Services (IHSS) benefits for Thomas because Mother remains the authorized
6 representative on the IHSS case. Father also seeks an order preventing either party from
7 withdrawing funds from the joint brokerage account that they opened for Thomas. The Court
8 denied Father’s ex parte request pending a hearing on 5/14/2026 on shortened time.

- 9 3) On 5/5/2026, Mother filed a response in which she states she initially had full custody of Thomas;
10 she states that for the first 11 years of Thomas’s life, her timeshare was 99% and that Father’s was
11 1%. In 2020, after 3 years of “extreme violence” by Thomas against her, Mother filed a motion to
12 have Thomas placed in a mental hospital as she believed he was a threat and danger to himself
13 and others. The matter was settled out of court, with the parties agreeing to share 50/50 custody
14 and to open a joint account for Thomas’s benefit, with each party putting \$500 per month into the
15 account. She states that Thomas is now over 6’2” and wears XL men’s clothes and size 13 shoes.
16 She states his behavior has worsened dramatically and that he bit a large chunk of flesh and
17 muscle out of her left forearm, causing her permanent disfigurement and nerve damage. In
18 addition, he regularly sexually assaults Mother and engages in self harm, smashing his head
19 against walls until there are holes in the walls. Mother reiterates her request to have Thomas
20 placed in a mental hospital. Mother also asks that the court permit her to withdraw assets from the
21 joint account, which now has a balance of \$340,000. She states she has placed \$265,000 of this
22 amount into the account, while Father has contributed \$75,000. She states she has spent well over
23 the account balance over the years, caring for Thomas.

24 **B. Findings and Orders**

- 25 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
26 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
27 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
28 child is the United States.

1 2) **The parties shall appear at 9am on 5/14/2026 in Department 404 in person or via Zoom**
2 **video.**